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April 17, 2018					
FEDERAL MARITIME COMMISSION					

FEDERAL MARITIME COMMISSION

DOCKET NO. 17-02

HANGZHOU QIANWANG DRESS CO., LTD.

v.

RDD FREIGHT INTERNATIONAL INC.

NOTICE TO PARTIES REGARDING REQUEST FOR ENLARGEMENT OF TIME

On April 17, 2018, the Office of Administrative Law Judges received an email from Xingliang Qian, the representative for Hangzhou Qianwang Dress Co., Ltd., stating:

Because my assistant (he has good English) is [traveling] now, he need be back end of April, so I need to reply or confirm all the [questions] before May 07.

Please confirm it is okay.

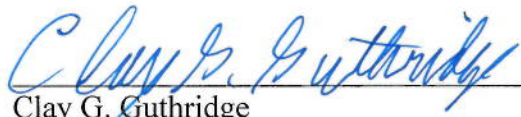
(Email dated Tuesday, April 17, 2018 9:07 AM, from echohats@aliyun.com to Judges@FMC.gov, and Attorney Pan, rpanlaw@yahoo.com.) Xingliang Qian is reminded that “[a]ny request for action by the Commission or presiding officer must be made by motion, not by letter or email request.” *Hangzhou Qianwang Dress Co., Ltd. v. RDD Freight International Inc.*, FMC No. 17-02, Order ¶ 14 (ALJ Mar. 3, 2017) (Initial Order). Xingliang Qian is also reminded that the Rules require that a party filing a non-dispositive motion

must attempt to discuss the anticipated motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement. The moving party must state within the body of the motion what attempt was made or that the discussion occurred and whether the motion is opposed.

46 C.F.R. § 502.71(a).

The undersigned is treating Xingliang Qian's request as a motion by Hangzhou Qianwang Dress Co., Ltd. for enlargement of time to May 7, 2018, to respond to Respondent's motion to compel filed on April 6, 2018. The Secretary is asked to enter the email described above on the docket as Complainant's Motion for Enlargement of Time to Respond to Motion to Compel. Complainant's response is currently due on April 25, 2018. *Hangzhou Qianwang Dress Co., Ltd. v. RDD Freight International Inc.*, FMC No. 17-02, Order ¶ 14 (ALJ Mar. 21, 2018) (Order Permitting Motion to Compel). It is hereby

ORDERED that respondent RDD Freight International Inc., file any response to the motion for enlargement of time by close of business April 19, 2018. *See* 46 C.F.R. § 502.105 ("Except as otherwise provided by law the presiding officer, for good cause, may reduce or enlarge any time limit prescribed in the rules of this Part."). If no response is received, it will be assumed that Respondent does not oppose the motion for enlargement of time.


Clay G. Guthridge
Administrative Law Judge